

Cheshire County Council Act 1968

CHAPTER xxxvi

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ELIZABETH II



1968 CHAPTER xxxvi

An Act to make provision in relation to the offices of chairman and deputy chairman of the Cheshire Court of Quarter Sessions; to confer further powers on the Cheshire County Council and local authorities in the administrative county of the county palatine of Chester in relation to amenities, lands, industrial development and highways and the local government, improvement, health and finances of the county; to enact provisions with respect to tattooists; to make further provision for the superannuation of employees; and for other purposes.

[26th July 1968]

WHEREAS it is expedient to make provision for the appointment of a whole-time salaried chairman and one or more deputy chairmen of the Cheshire Court of Quarter Sessions:

And whereas it is also expedient to make provision for the payment of superannuation and ancillary benefits in relation to the said appointments:

And whereas it is expedient that further and better provision should be made with reference to amenities, lands, industrial development and highways and for the local government, improvement, health and finances of the administrative county of the county palatine of Chester and that the powers of the county council of that administrative county (hereinafter referred to as

“the Council”) and of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

And whereas it is expedient to confer further powers on the said local authorities with reference to tattooists:

And whereas it is expedient to make further provision for the superannuation of officers and servants of the Council and local authorities and of persons who contribute to the superannuation funds of the Council and local authorities and for the benefit of their dependants and to amend the enactments relating thereto:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Cheshire County Council Act 1968.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Cheshire Court of Quarter Sessions.

Part III.—Amenities and land.

Part IV.—Highways and streets.

Part V.—Public health and housing.

Part VI.—Fire protection and public safety.

Part VII.—Tattooists.

Part VIII.—Finance.

Part IX.—Superannuation.

Part X.—Miscellaneous.

Part XI.—General.

—(1) In this Act the several words and expressions to which meanings are assigned by sections 90, 110 and 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART I

—cont.

Interpretation.

2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“the Act of 1933” means the Local Government Act, 1933; 1933 c. 51.

“the Act of 1936” means the Public Health Act, 1936; 1936 c. 49.

“the Act of 1950” means the Public Utilities Street Works Act, 1950; 1950 c. 39.

“the Act of 1953” means the Cheshire County Council Act, 1953; 1953 c. xl.

“the Act of 1957” means the Housing Act, 1957; 1957 c. 56.

“the Act of 1959” means the Highways Act, 1959; 1959 c. 25.

“the Act of 1960” means the Road Traffic Act, 1960; 1960 c. 16.

“the Act of 1962” means the Town and Country Planning Act, 1962; 1962 c. 38.

“the Act of 1967” means the Road Traffic Regulation Act, 1967; 1967 c. 76.

“appointed day” has the meaning assigned to that expression by section 4 (The appointed day) of this Act;

“authorised security” means any mortgage, stock, bond or other security which the Council are for the time being authorised to grant, create or issue, or upon or by means of which the Council are for the time being authorised to raise money;

“burial authority” has the same meaning as in section 11 of the Burial Act, 1900; 1900 c. 15.

“burial ground” includes a cemetery;

“clerk” means clerk of the Council;

“Council” means the county council of the county;

“county” means the administrative county of the county palatine of Chester;

“county fund” means the county fund of the Council;

“daily fine” means a fine for each day on which an offence is continued after conviction thereof;

“district” means a borough or an urban or rural district in the county;

“grave” includes a grave space;

“highway authority” means—

(a) in the case of a trunk road, the Minister of Transport or, with her consent, the authority who are for the time being acting as her agent under the Act of 1959 with respect to that trunk road;

PART I
—cont.

(b) in the case of a county road in the county, except a claimed county road, and in the case of any other highway for the time being maintained by the Council, the Council; and

(c) in the case of any other highway, the local authority for the district in which the highway is situate;

“land” includes land covered by water and any interest in land or any easement or right in, to or over land;

“local authority” means the council of a district;

“memorial” means any object erected, placed or planted for the commemoration of the dead and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial;

“Minister” means—

(a) for the purposes of Part IV (Highways and streets) of this Act, the Minister of Transport;

(b) in all other cases, the Minister of Housing and Local Government;

“owner” in relation to any premises, means a person, other than a mortgagee not in possession, who, whether in his own right or as trustee or agent for any other person, is entitled to receive the rack-rent of the premises or, where the premises are not let at a rack-rent, would be so entitled if the premises were so let;

“parish council” means the parish council of a rural parish in the county or where there is no parish council the parish meeting of such parish;

“rural district” means a rural district in the county;

“rural district council” means the council of a rural district;

“statutory undertakers” means any company, body or person authorised by any enactment to supply electricity, gas or water;

“voluntary organisation” means any organisation not carried on for profit, not being an organisation carried on by a public authority, and “voluntary” shall be construed accordingly.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, amended or varied by, or by virtue of, any subsequent enactment including this Act.

The appointed day.

4.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of a local authority subject to, and in accordance with, the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

PART I
—cont.

3) The local authority shall cause to be published in a local newspaper circulating in their district notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day;

the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

PART II

CHESHIRE COURT OF QUARTER SESSIONS

5. In this Part of this Act, unless the subject or context otherwise requires—

Interpretation
for purposes
of Part II
of Act.

“the chairman” means the person holding office in pursuance of the provisions of this Part of this Act as salaried chairman of quarter sessions;

“deputy chairman” means a person holding office in pursuance of the provisions of this Part of this Act as salaried deputy chairman of quarter sessions;

“quarter sessions” means the Cheshire Court of Quarter Sessions as for the time being constituted.

6.—(1) (a) It shall be lawful for Her Majesty, from time to time when occasion shall require, on the recommendation of the Lord Chancellor made at the instance of quarter sessions to appoint, subject to the provisions of this Part of this Act—

Appointment
of chairman
and deputy
chairmen of
court of
quarter
sessions for
the county.

(i) a person to be whole-time salaried chairman;

(ii) one or more persons to be whole-time salaried deputy chairman or deputy chairmen of quarter sessions;

so long as any such person is legally qualified as provided by subsection (1) of section 1 of the Administration of Justice (Miscellaneous Provisions) Act, 1938, and so long as he remains in the commission of the peace for the county: 1938 c. 63.

Provided that, before making any recommendation for an appointment under this section, the Lord Chancellor shall consider any representations which may be made to him with respect

PART II
—cont.

thereto by quarter sessions, and shall take into account the expediency of recommending, where practicable, a person residing in, or otherwise connected with, the county.

1962 c. 15.

(b) The salary to be paid to the chairman or to a deputy chairman shall be of such amount as may from time to time be determined under section 8 of the Criminal Justice Administration Act, 1962, and shall be paid to the chairman or to a deputy chairman, as the case may be, by the Council out of the county fund.

1938 c. 63.

(2) For the purposes of section 2 of the Administration of Justice (Miscellaneous Provisions) Act, 1938, the chairman shall be deemed to be a legally qualified chairman and a deputy chairman shall be deemed to be a legally qualified deputy chairman in relation to quarter sessions.

(3) Neither the chairman nor a deputy chairman shall—

- (a) practise as a barrister or a solicitor;
- (b) without the consent of quarter sessions act for any remuneration to himself as arbitrator or referee; or
- (c) carry on any profession or engage in any employment, of such a nature as will, in the opinion of quarter sessions, prevent him from properly performing his duties as chairman or deputy chairman, as the case may be.

Retirement
or removal
of chairman
and deputy
chairmen.

7.—(1) A person holding office as the chairman or as a deputy chairman shall vacate his office at the end of the completed year of service in the course of which he attains the age of seventy-two years:

Provided that where the Lord Chancellor considers it desirable in the public interest to retain the chairman or a deputy chairman in office after the person concerned attains the said age, he may from time to time authorise the continuance of that person in office up to such later age (not exceeding seventy-five years) as he thinks fit.

(2) A person holding office as the chairman or as a deputy chairman may be removed from office by the Lord Chancellor for inability or misbehaviour.

Superannua-
tion
allowance
and benefits.

8.—(1) The Council (if they think fit) may undertake to pay to or in respect of the chairman or a deputy chairman, if—

- (a) after five years' service he dies in office or his office is vacated in pursuance of subsection (1) of the last foregoing section; or
- (b) after five years' service he retires and the Council are satisfied by means of a medical certificate that, by reason of infirmity of mind or body, he is incapable of discharging the duties of his office and that the incapacity is likely to be permanent; or

) after fifteen years' service he resigns;

superannuation allowance and benefits, to be ascertained in accordance with a scheme to be prepared by the Council and approved by the Lord Chancellor.

PART II
—cont.

A scheme under this section may be varied or revoked by subsequent scheme prepared by the Council and approved by the Lord Chancellor.

Any superannuation allowance and benefits which may become payable pursuant to a scheme prepared and approved under this section shall be paid by the Council out of the county

All powers and duties conferred or imposed by this Part of this Act shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by Act of Parliament, law or custom, and, subject to any express provision of this Part of this Act, all such other powers and duties shall be exercised and shall be performed in the same manner as if this Act had not been passed.

Powers of
Part II of
Act to be
cumulative.

PART III

AMENITIES AND LAND

10. Notwithstanding the provisions of subsection (3) of section 6 of the Local Authorities (Land) Act, 1963, the Council may be authorised, under section 103 of the National Parks and Access to the Countryside Act, 1949, to acquire land in the county, under the power conferred by subsection (5) of section 89 of that Act for the purpose of their functions under subsection (2) of the said section 89, as set out in the said section 6, which is not itself derelict, neglected or unsightly but which is required for the purpose of bringing into use or improving the appearance of land in the county which is derelict or which, by reason of neglect following the abandonment of the previous use of the land, is unsightly and which, unless such functions are exercised, is likely to continue in that condition.

Reclamation
and
improvement
of land.
1963 c. 29.
1949 c. 97.

11.—(1) A local authority, for the purpose of ascertaining whether or not an offence has been committed under section 1 of the Caravan Sites and Control of Development Act, 1960, may by notice in writing, signed by their clerk or his lawful deputy, require the owner or reputed owner of any land in their district on which a caravan is stationed or any person who, either directly or indirectly, receives rent in respect of such land, to state in writing the name and address of the occupier of such land, and any person who, having been required by a local authority in pursuance of this section to give to them any information, wilfully fails to give that information within forty-two days of being so

As to
occupiers
of land on
which
caravans are
stationed.
1960 c. 62.

PART III
—cont.

required, or knowingly makes any misstatement in respect thereof, shall be liable on summary conviction to a fine not exceeding five pounds.

(2) In this section—

“caravan” has the meaning assigned to it by subsection (1) of section 29 of the said Act;

“occupier” has the meaning assigned to it by subsection (3) of section 1 of the said Act.

Prohibition
of parking
of heavy
commercial
vehicles at
night in
estate roads
and grounds
of private
houses.

12.—(1) (a) If after the appointed day representation is made in manner hereinafter mentioned to a local authority that the amenities of any part of their district are prejudicially affected by the use during the prescribed hours of any estate road or of any land within the curtilage of any private dwelling-house in a street in the district as a parking place for one or more heavy commercial vehicles, the local authority on complying with the provisions of this section may make an order precluding the use as a parking place for heavy commercial vehicles during the prescribed hours of the estate road or land within the curtilage of the private dwelling-houses in the street or any part thereof to which the representation relates.

(b) A representation under the foregoing paragraph shall be made in writing and signed by not less than ten local government electors residing in private dwelling-houses in the estate road or street concerned or in any other estate road or street within 100 yards thereof.

(2) (a) If the local authority consider that such an order should be made they shall publish a notice thereof in a local newspaper circulating in the district stating where the draft order can be inspected and copies purchased and that objections to the said order may be made in writing within one month after the date of the first publication of the notice.

(b) The local authority shall consider all such objections and shall afford to the owner or occupier of every dwelling-house abutting or fronting on such estate road or street or such part thereof who has made objection an opportunity of being heard by a committee of the local authority before the order is made.

(3) (a) After considering any objections made under the last foregoing subsection the local authority may make an order prohibiting the use during the prescribed hours of the estate road or the land within the curtilage of any dwelling-house in the street or part of a street specified in the order as a parking place for one or more heavy commercial vehicles.

PART III
—cont.

Any such order shall come into operation at the expiration of the period of one month after the first publication in pursuance of subsection (4) of this section of the notice of the order or if an appeal is lodged when the appeal is disposed of or withdrawn fails for want of prosecution and shall have effect for such period not exceeding five years as the local authority may determine but without prejudice to their power to make a further order in the same manner as the original order.

When an order has been made by the local authority under this section they shall give notice thereof and of the right of appeal by publication in a local newspaper circulating in the district and any person affected by the order and the owner or occupier of a dwelling-house in the district who is aggrieved by the order may appeal to a magistrates' court:

Provided that in its application to an appeal under this section, section 300 of the Act of 1936 shall have effect as if the time within which such an appeal may be brought were one month after the first publication in pursuance of this subsection of the notice of the order to which the appeal relates.

5) In this section—

“dual-purpose vehicle” means a vehicle constructed or adapted for the carriage both of passengers and of goods or burden of any description being a vehicle of which the unladen weight does not exceed two tons and which either—

(a) satisfies the conditions as to construction specified in Schedule 1 to this Act; or

(b) is so constructed or adapted that the driving power of the engine is or by the appropriate use of the controls of the vehicle can be transmitted to all the wheels of the vehicle;

“estate road” means a highway (other than a classified county road) maintainable at the public expense—

(a) in respect of which the Council or a local authority is the highway authority; and

(b) in which the aggregate length of the frontages of the buildings on both sides constitutes at least one-half of the aggregate length of all the frontages on both sides;

“heavy commercial vehicle” means any vehicle (not being a dual-purpose vehicle) whether mechanically propelled or not constructed or adapted for the carriage of goods and having an unladen weight exceeding thirty hundred-weight;

“prescribed hours” means the hours between nine o'clock in the evening and eight o'clock in the following morning;

PART III
—cont.

“ private dwelling-house ” means a dwelling-house of which no part is used for the purposes of any trade or business and includes a block of flats no part of which is used for the purposes of any trade or business.

(6) For the purposes of this section a vehicle having an unladen weight exceeding thirty hundredweight in which is installed freezing equipment designed or used for the manufacture of ice-cream or any similar commodity and which but for the installation of that equipment would have an unladen weight of thirty hundredweight or less shall be deemed not to be a heavy commercial vehicle but the exemption afforded to such a vehicle by this subsection shall only have effect—

- (a) if and so long as the equipment is not in operation; or
- (b) if the equipment is in operation, if and so long as it is so operated as not to cause a nuisance by reason of the noise of the equipment in operation or the smell emanating from it.

(7) Nothing in any order made under this section shall apply so as to prevent a heavy commercial vehicle waiting during the prescribed hours on any estate road or on any land within the curtilage of any private house in a street to which the order relates for any period not exceeding one hour.

(8) The occupier of the land within the curtilage of a private dwelling-house or any part thereof who permits the same to be used in contravention of an order under this section and any person who parks a heavy commercial vehicle in contravention thereof shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

Power to
Council
to assist
industry.

13. The Council may, if requested so to do by any person—

- (1) who is the owner or intended owner or lessee of any land in the county; or
- (2) who has purchased or intends to purchase or take on lease from the Council any land (whether within or outside the county);

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may make grants or loans towards the cost of such works or of the provision or improvement of such services or facilities or both.

Provided that nothing in this section shall authorise the Council to carry out works for the provision or improvement of services which it is the function of statutory undertakers to provide or improve.

In this section “ industrial building ” has the meaning assigned thereto by the Local Employment Act, 1960.

PART III

—cont.

(1) The Council by means of an order made by the Council and submitted to and confirmed by the confirming authority may be authorised to create in favour of the Council over any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in or over or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of their undertakings, powers or duties. Compulsory acquisition of easements.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in or over or in relation to which it is proposed to be created or, in the case of a park or garden adjoining to a house, without seriously affecting the amenity or convenience of the house.

(3) The Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946 and as if— 1946 c. 49.

(a) the expression "compulsory purchase of land" in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within the meaning of section 8 of the Compulsory Purchase Act, 1965. 1965 c. 56.

(5) In this section the expression "confirming authority" means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following:— Agreements with developers.

(a) determining the order in which development of that land shall be carried out as between the different parts

PART III
—cont.

of that land and as between the different parts of the development of any part of that land;

- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;
- (c) providing that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Council shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;
- (f) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the local land charges register, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement, the Council may after giving not less than twenty-one days' notice of their intention so to do enter on the land and do the work in default and the expenses incurred by the Council in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

PART III
—cont.

3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

4) In this section "development" has the same meaning as in section 12 of the Act of 1962.

—(1) The provisions of this Part of this Act mentioned in section (2) of this section shall apply to a local authority, for that purpose those provisions shall have effect as if references therein to the Council and to the county there are substituted references to the local authority and to their district respectively, and subject to any other necessary modifications.

2) The provisions hereinbefore referred to are—

Section 10 (Reclamation and improvement of land);

Section 14 (Compulsory acquisition of easements);

Section 15 (Agreements with developers).

(3) (a) Where it is represented to the Council by a local authority that it is expedient in any particular case that the powers of the Council under section 13 (Power to Council to assist industry) of this Act should be exercised by the local authority, and the Council agree, the powers shall be exercisable in that case by the local authority, either in conjunction with, or in place of, the Council, as may be so agreed.

(b) So far as is necessary for giving effect to any agreement under this subsection, references in the said section 13 to the Council and to the county shall be construed as references to the local authority with whom such an agreement is made and their district respectively.

(c) The powers conferred on a local authority by this subsection shall not be exercisable by the Northwich Rural District Council.

PART IV

HIGHWAYS AND STREETS

7.—(1) Where for the convenience of persons using a trunk or county road it appears to the Council to be necessary to provide parking places for vehicles, they shall have for such purpose the powers of a local authority under the provisions of sections 28 to 32 of the Act of 1967, other than subsections (1), (2), and (7) of section 29 of that Act, to provide, in the county, parking places (other than underground parking places) and the powers as extended to the Council by virtue of this section

PART IV
—cont.

shall include powers to provide and maintain any camping places, refreshment rooms, office accommodation, shelters, cloak-rooms or other conveniences for use in connection with any such parking place.

(2) Accordingly, the said provisions of sections 28 to 32 in their application to the Council shall have effect as if—

- (a) references to a parking place were construed as including references to any such camping places, refreshment rooms, office accommodation, shelters, cloakrooms or other conveniences;
- (b) in subsection (1) of the said section 28 for the words “purpose of relieving or preventing congestion of traffic” there were substituted the words “convenience of persons using a trunk road or county road within the meaning of the Highways Act, 1959” and the words “whether above or below ground and” were omitted;
- (c) for subsection (5) of the said section 28 there were substituted the following subsection:—

“(5) Any power conferred by this section to provide a parking place includes power to maintain it and any buildings comprised in it”; and
- (d) in subsection (6) of the said section 28 the words from “and for the purposes of this section” to the end of the subsection were omitted;
- (e) subsection (8) of the said section 28 and subsection (5) of the said section 31 were omitted.

1959 c. 25.

(3) Where the Council propose to acquire any land or to utilise any land appropriated by them for the purposes of subsection (1) of this section, they shall, before carrying the proposal into effect—

- (a) cause notice of the proposal (specifying the land to which it relates and notifying the period, which shall not be less than twenty-eight days, within which any representations relating to the proposal shall be sent in writing to the Council) to be published in at least one newspaper circulating in the area in which the land is situate and a copy of the notice to be posted for not less than fourteen days on, or adjacent to, the land; and
- (b) consider any representations which are sent to them in writing within the time fixed in that behalf and give notice of their decision on the representations to the person by whom they were made.

PART IV
—cont.

The Council shall not themselves provide or sell refreshment at any refreshment room or other premises provided for the purposes of subsection (1) of this section, and any refreshment or other premises so provided shall be disqualified for receiving a licence granted by licensing justices under the Licensing Acts, 1953 to 1961, other than a restaurant licence within the meaning of section 1 of the Licensing Act, 1961.

1961 c. 61.

18.—(1) The powers of a parish council under section 46 of the Act of 1967 to provide parking places for bicycles and motor-cycles shall extend so as to authorise a parish council to provide parking places for other vehicles (whether or not consisting of buildings) in the circumstances and subject to the conditions prescribed by that section and by section 47 of the said Act.

Extension
of parish
councils'
powers to
provide
parking
places.

(2) For the purpose of exercising the powers of the said section 46 as extended by the foregoing subsection the following provisions of the Act of 1967 shall apply to a parish council as they apply to a local authority, namely:—

subsections (5) and (8) of section 28; subsections (1) to (3), (5) to (7) and (9) of section 29; section 30; subsections (1) to (4), (5) and (6) of section 31; subsections (1) and (3) of section 32; and section 96.

(3) The provisions of section 48 of the Act of 1967 shall apply to the exercise by a parish council of the powers of this section as they apply to such a council in the exercise of the powers of section 46 of that Act and section 49 of the Act shall have effect accordingly.

19. Section 1 of the Act of 1967, shall have effect in its application to the county as if—

Amendment
of section 1
of Act of 1967.

(1) in subsection (1) after paragraph (e) there were added the following paragraph:—

“ or (f) for improving or facilitating the movement, convenience or comfort of persons or other traffic using the road or any part of the road or in the interest of the amenity of the area surrounding the road or any part of the road.”;

(2) in subsection (3) after the words “ exceptions so specified ” there were inserted the words “ or by foot passengers ” and after paragraph (e) there were added the following paragraph:—

“ (f) prohibiting the use of roads by vehicular traffic or by foot passengers ”;

and after the words “ express carriage ” there were inserted the words “ and no order under this section which could not have been made if this section had not

PART IV
—cont.

been amended by section 19 (Amendment of section 1 of Act of 1967) of the Cheshire County Council Act, 1968, shall be made prohibiting the use by vehicular traffic of a road or any part of the width thereof upon which any service of stage carriages or express carriages is operated unless there is an alternative road or part of a width of a road suitable for use by such carriages and convenient for the persons using or desiring to use them or if the effect of the order would be to prevent such access to or egress from any station or depot used by stage carriages or express carriages as may be reasonably required”;

- (3) the following new subsection were inserted after subsection (3):—

“(3A) In any case in which the authority intend to make an order under this section which could not have been made if this section had not been amended by section 19 (Amendment of section 1 of Act of 1967) of the Cheshire County Council Act, 1968, and the effect of such order would be to prohibit the use of a road by vehicular traffic the authority shall consult with such persons as appear to them to be affected by the order and such representative organisations as they think fit and if, after such consultation as aforesaid, the authority determine that access to or within reasonable distance of any premises where trade or business is carried on, situated on or adjacent to the road is essential for the purpose of the loading and unloading of vehicles, the order shall make such provision for such access (either with or without the permission of the authority or a police constable in each case) as the authority may determine”;

- (4) in subsection (5) after the words “as may be reasonably required” where those words first occur there were inserted the words “for foot passengers or” and after the words “any other premises accessible” there were inserted the words “for foot passengers or”;
- (5) in subsection (6) before the words “shall not have effect” there were inserted the words “(except in so far as it relates to foot passengers)” and after the words “buildings on or near it” there were inserted the words “or (if the order does not prevent access for more than ten hours in all in any consecutive period of twenty-four hours) for improving or facilitating the movement, convenience or comfort of persons or other traffic using the road or any part of the road or in the interest of the amenity of the area surrounding the road or any part of the road”;

PART IV
—cont.

-) in subsection (8) for the words from the beginning to "liable" there were substituted the words "A person who contravenes, or who uses a vehicle, or causes or permits a vehicle to be used, in contravention of, a traffic regulation order shall be liable".

Restriction
on use of
certain roads
by vehicles.

(1) Where it appears to the highway authority expedient for the proper planning or the improvement of the environment or the amenities of the neighbourhood that the use of any predominantly residential road in the county or any predominantly residential part of such a road should be restricted, the highway authority may by order made in accordance with the following subsections prohibit or restrict the use of the road or part of the road by vehicular traffic of any class or description specified in the order:

Provided that no order shall be made—

(a) prohibiting or restricting the use by public service vehicles of a road or any part of the width thereof upon which any service of stage carriages or express carriages is operated without the consent of the holders of the road service licence under which that service is authorised;

(b) except with the consent of the Minister who shall not give such consent in any case which in his opinion could be more appropriately dealt with by an order under section 1 of the Act of 1967, as amended by section 19 (Amendment of section 1 of Act of 1967) of this Act.

(2) An order under this section with respect to a road or part of a road shall make provision for permitting reasonable access to, or, alternatively, access within a reasonable distance of, premises situated on or adjacent to the road or any other premises accessible from, and only from, the road.

(3) Subsections (2) and (3) of section 2 and section 4 of the Act of 1967 and any regulations made by the Minister under the said section 2 shall apply to orders under this section as they apply in relation to orders under section 1 or section 2 of that Act, as the case may be.

(4) A person who uses a vehicle, or causes or permits a vehicle to be used, in contravention of an order made and confirmed under this section shall be liable to a fine not exceeding twenty pounds.

(5) In this section "express carriage", "public service vehicle" and "stage carriage" have the same respective meanings as in the Act of 1960.

PART IV
—cont.

Prevention or
restriction of
vehicular
access to
and from
certain roads.

21.—(1) Where an order is made under section 1 of the Act of 1967, and, where necessary, confirmed by the Minister having the effect of preventing or restricting access by vehicular traffic to or from a road which is a highway maintainable at the public expense from or to any other street, the highway authority may, for the purpose of facilitating the movement of vehicular traffic along or the safety of the public on that road (or on any proposed widening, improvement, realignment or reconstruction thereof) or that street, construct and maintain works in, and at the junction of, that street for such prevention or restriction.

(2) The powers conferred by subsection (1) of this section shall include power to light any such works as aforesaid, to pave, grass or otherwise cover them, or any part of them, to erect pillars, walls, rails or fences on, around or across them or any part of them, and to plant on them trees, shrubs and other vegetation either for ornament or in the interests of safety.

(3) The highway authority may alter or (with the consent of the Minister) remove any works constructed by them under this section.

(4) Before constructing any works under this section in any street adjoining, or near to, any station or depot of the British Railways Board, the highway authority shall consult with that board, and any works carried out shall not affect the sighting of railway signals or the stability of railway works.

(5) Before constructing any works under this section in any street adjoining or near to any station, garage or depot of any passenger road transport operator the highway authority shall consult with that operator.

(6) In relation to any works constructed by the highway authority under this section, being works to which, apart from this subsection, the provisions contained in Part II of the Act of 1950 would not apply, the said provisions shall apply as if the works were executed for road purposes by an authority mentioned in subsection (1) of section 21 of that Act and were included in the works mentioned in paragraph (a) of the said subsection (1) of section 21.

(7) If any person, without lawful authority, removes or interferes with any works constructed under subsection (1) of this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Temporary
stoppage of
streets.

22.—(1) For the purpose of—

(a) making any new street; or

(b) providing a parking place for vehicles under section 28 of the Act of 1967;

local authority may break up and for any reasonable time
up, divert and interfere with any street in their district and
at the traffic therefrom and prevent persons using it:

Provided that a local authority shall not exercise the powers of
this section—

- (i) as respects any trunk road, without the consent of the
Minister; or
- (ii) as respects any county road, without the consent of the
Council; or
- (iii) so as to deprive foot-passengers bona fide going to or
from any building or land in the street of reasonable
access to the building or land; or
- (iv) so as to obstruct, or interfere with, the access to, or
exit from, any station, dock, wharf or depot of any
railway, dock, canal, inland navigation or passenger
road transport undertakers.

2) A local authority, when considering the question of
exercising their powers under this section, shall have regard to
existence of alternative routes suitable for the traffic which
be affected.

3) The provisions of Schedule 3 to the Act of 1967, so far as
applicable, shall apply in respect of the exercise by a local
authority of the powers of this section as they apply in respect
of the making by a highway authority of an order under
section 12 of that Act.

23.—(1) No person shall place or erect in the county any
structure on land adjacent to a street at, or within a distance of
10 yards from, the corner of any street unless he has given to
the highway authority notice of his intention so to do accompanied
by plans and particulars of the structure, and the highway
authority have approved the placing or erection thereof under this
section:

Erection of
structures
at street
corners.

Provided that this subsection shall not apply to any structure
being development which, by virtue of the Act of 1962, and any
development order for the time being in force thereunder, may
be undertaken only with permission granted on an application,
being an advertisement which may be displayed only with
consent granted on an application under regulations for the time
being in force under section 34 of that Act.

2) Within five weeks from the receipt of such a notice from
any person the highway authority may give him notice that they
approve the placing or erection of the structure, or that they
approve it only subject to such conditions or to such modifications
of the plans and particulars submitted to them as may be specified
in the notice:

PART IV
—cont.

Provided that a notice shall not be given under this subsection except on the ground that the structure would, by obstructing the view of foot-passengers or drivers of vehicles, constitute a danger to the traffic on the street upon, adjoining or near to which it is proposed to be placed or erected, or, as the case may be, would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The highway authority may at any time within the said five weeks give notice that they approve the placing or erection of the structure in accordance with the plans and particulars submitted to them, and if within the said five weeks the highway authority have not given notice under the last foregoing subsection, they shall be deemed for the purposes of this section to have approved the placing or erection of the structure in accordance with those plans and particulars.

(4) Where the highway authority have approved the placing or erection of the structure, it shall not be placed or erected—

(a) otherwise than in accordance with the plans and particulars submitted as aforesaid; or

(b) if notice has been given under subsection (2) of this section of any conditions or modifications, otherwise than in accordance with those conditions and with the said plans and particulars as modified by the notice.

(5) Any person giving notice under subsection (1) of this section who is aggrieved by a notice given under subsection (2) thereof may, within twenty-one days from the service of the last-mentioned notice, appeal to the Minister, who may make such order as he thinks fit and whose decision shall be final.

(6) If any person places or erects any structure in contravention of the foregoing provisions of this section he shall be liable to a fine not exceeding five pounds.

(7) The foregoing provisions of this section shall not apply to a temporary structure required to be placed or erected at, or within a distance of 10 yards from, the corner of a street for the purpose of the construction, demolition, alteration, repair or maintenance of any building, works or apparatus:

Provided that, if any such temporary structure is not removed when the construction, demolition, alteration, repair or maintenance of the building, works or apparatus is completed, the person who placed or erected it shall be liable to a fine not exceeding five pounds.

(8) Where a person is convicted of an offence under either of the two last foregoing subsections, the court by which he is convicted may order him, within such time as may be fixed by

order, to remove the structure in respect of which he was
ordered; and if he fails to comply with the order—

PART IV
—cont.

(a) he shall be liable to a daily fine not exceeding forty
shillings; and

(b) the highway authority after giving him notice of their
intention so to do may remove the structure and recover
from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a fine for any day after
that on which the highway authority have given him notice of
their intention to remove the structure.

(9) The provisions of this section shall not apply to any part
of a street with respect to which restrictions have been imposed
under section 81 of the Act of 1959 or section 4 of the Roads
Improvement Act, 1925.

1925 c. 68.

(10) For the purposes of this section the corner of a street
shall be deemed to be the point at which the frontage or boundary
line of that street, if necessary continued in a straight line, inter-
sects the frontage or boundary line of any other street, if necessary
similarly continued.

24.—(1) Any person may in connection with any building operations or work of demolition, or in connection with the alteration, repair, maintenance or cleansing of the exterior of any building, erect or place or cause to be erected or placed any scaffolding obstruction or projection constituting an obstruction (each of which is hereafter in this section referred to as "scaffolding"), in, upon or over any street in the county if he has previously obtained a licence from the highway authority and complies with such terms and conditions as may be laid down in the licence granted to him:

Provided that the highway authority shall be entitled to refuse a licence only on the grounds that the scaffolding would cause an avoidable or unreasonable obstruction of such street.

(2) Any scaffolding erected under a licence granted under this section shall be sufficiently lighted during the hours of darkness:

Provided that this subsection shall not apply to a scaffolding projecting over the footway of a street but not over the carriage-way if no part thereof is less than 8 feet above the level of the footway measured vertically and if the nearest part thereof to the carriageway is at least 1 foot 6 inches from the carriageway measured horizontally.

(3) Any person offending against the provisions of this section contravening the terms or conditions of any licence granted to him shall be liable for every such offence to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

PART IV
—*cont.*

(4) Any person aggrieved by the refusal of the highway authority to grant a licence under this section or by the terms and conditions laid down in any such licence may appeal to a magistrates' court.

(5) No licence shall be required under this section in respect of any scaffolding erected or placed by the British Railways Board for the purpose of constructing, reconstructing or maintaining any works in the exercise of their statutory powers.

(6) Before the highway authority grant any licence under this section they shall give to any statutory undertakers who appear to them to be concerned notice of their intention to do so, and on giving any such licence shall attach thereto such conditions as any of the statutory undertakers may, within the period of seven days after the giving of such notice to them, reasonably require for the protection of any apparatus belonging to, or used or maintained by, the statutory undertakers or for securing access to such apparatus.

**Verges, etc.,
of housing
estates.**

25.—(1) Where any grass verge, garden or space which has been provided by a local authority in pursuance of the Act of 1957, or by a housing association in pursuance of arrangements made with a local authority under that Act, or any enactment repealed by that Act, is maintained in an ornamental condition or mown, the local authority may by notice prohibit any person from—

- (a) causing or permitting motor vehicles or caravans to enter upon any such grass verge, garden or space; or
- (b) entering upon any such garden.

(2) Any such notice as is referred to in the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge, garden or space to which it relates.

(3) If any person (except in a case of emergency) contravenes a notice so posted he shall be liable to a fine not exceeding ten pounds.

(4) Before exercising their powers under subsection (1) of this section in relation to any grass verge, garden or space provided by a housing association, the local authority shall consult the association.

(5) The powers of this section shall not be exercisable in relation to any grass verge, garden or space which forms part of a highway maintainable at the public expense.

(6) In this section "verge" includes any lands situated between two carriageways or any part of a street which is not a carriageway, footway or cycle track.

PART IV
—cont.Erection of
place names.

(1) A rural district council or parish council may provide, and maintain in proper and convenient situations within their district or parish place-name signs of such size, colour and type as they may from time to time determine:

Provided that no such sign shall be erected on land forming part of or adjacent to a highway except with the consent of the highway authority and in accordance with such conditions as the highway authority may think fit to impose.

Any sign provided or erected under this section shall comply with any order or regulation made by the Minister in respect of traffic signs, or any general or special directions given by her, in pursuance of the Act of 1967.

27.—(1) The provisions of subsection (2) of section 87 of the Act of 1936 shall extend so as to authorise the Council to provide public sanitary conveniences in, on or under any land which is adjacent to but which does not form part of a county road or a trunk road in the county and the provisions of subsection (3) of that section shall apply accordingly:

Extension of
power to
provide public
conveniences.

Provided that the powers of this subsection shall not be exercised in relation to a trunk road or in relation to any land acquired by the Minister in connection with a trunk road under subsection (5) or subsection (6) of section 214 of the Act of 1959, or under section 215 of that Act, without the consent of the Minister.

(2) The Council may enter into an agreement—

(a) with any person for the provision by him of any public sanitary conveniences which the Council have power to provide; and

(b) with the owner and occupier of any such premises as are referred to in subsection (1) of section 89 of the Act of 1936 or the owner and occupier of any premises comprising a petroleum filling station as defined in the Petroleum (Consolidation) Act, 1928, for the provision by him, in addition to any sanitary conveniences provided for the use of persons employed at or frequenting such premises, of additional sanitary conveniences for the use of members of the public;

1928 c. 32.

and any such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or expedient for the purposes of the agreement, including in particular but without prejudice to the generality of the foregoing, provision for—

(i) a contribution, whether by way of a loan or otherwise, by the Council towards the reasonable expenses incurred by any person in providing and maintaining sanitary conveniences for the use of members of the public;

(ii) the charges to be made to persons making use of any such conveniences, other than urinals;

PART IV
—cont.

(iii) the regulation of the use of any such conveniences.

Numbers of
houses.

1847 c. 34.

28. As from the appointed day section 65 of the Towns Improvement Clauses Act, 1847, shall have effect in its application to a local authority as if after the words "with such numbers as the commissioners approve of" there were inserted the word "and in such positions as to be easily visible from the street" and as if after the words "a number approved of by the commissioners" there were inserted the words "and in such position as to be easily visible from the street".

Oil pipes and
manholes in
streets.

29.—(1) The owner or occupier of any premises situated under, or abutting on part of, a street in any district may, with the consent of the highway authority, provide—

- (a) pipes under the street for conveying oil for use or storage to such premises; or
- (b) manholes in the street in connection with any such pipes.

1925 c. 22.

(2) In giving their consent under this section the highway authority may attach thereto such terms and conditions as they think fit, and such terms and conditions, and any condition imposed by them under subsection (5) of this section, shall be binding on successive owners and occupiers of the premises and shall be treated as a local land charge for the purposes of the Land Charges Act, 1925.

(3) Any person aggrieved by the refusal of the highway authority to give a consent under subsection (1) of this section or by any term or condition imposed by the highway authority under subsection (2) or subsection (5) of this section may appeal to a magistrates' court.

(4) If any person carries out any works to provide pipes or manholes as aforesaid without the consent of the highway authority, or fails to comply with any term or condition of a highway authority imposed on him under subsection (2) or subsection (5) of this section, he shall, subject to any order made on appeal, but without prejudice to any other liability to which he may be subject, be liable to a fine not exceeding fifty pounds.

(5) (a) Before the highway authority determine to give any consent under this section, they shall give at least twenty-eight days' notice of the application therefor to the Postmaster General and to any statutory undertakers who appear to them to be concerned, and on giving any such consent shall attach thereto such conditions as the Postmaster General or any such statutory undertakers may reasonably require for the protection of an apparatus belonging to, or used or maintained by, the Postmaster General or those statutory undertakers.

As soon as may be after the highway authority have given consent under this section they shall give notice thereof to the Master General and to any such statutory undertakers.

(a) Nothing in this section shall authorise any person to or require any alteration of, any telegraphic line belonging or used by the Postmaster General.

(b) In this subsection “alter” and “alteration” have the meanings as in the Telegraph Act, 1878.

1878 c. 76.

(c) The Act of 1950 shall not apply to the provision of pipes or manholes under subsection (1) of this section.

(d) This section shall not apply to—

(a) any street belonging to or repairable by the British Railways Board; or

(b) a pipe-line (as defined in section 65 of the Pipe-lines Act, 1962), being a pipe-line which may be placed in a street under the provisions of section 15 of the Pipe-lines Act, 1962, and in exercise of the powers given by that section; or

1962 c. 58.

(c) the carrying out of any works in a street by statutory undertakers in the exercise of their statutory powers.

—(1) Where any street works in the county have been completed by a street works authority but they are unable to recover the amount due from the owner of any premises or otherwise under the code of 1892 by reason of the fact that such owner is unknown and cannot, after diligent inquiry, made when the said amount becomes due and at reasonable intervals hereafter, be found, the street works authority may, at any time or the expiration of twelve years from the date when the said amount becomes due, apply to the county court, and that court, on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with, make an order vesting the said premises in the street works authority absolutely, and thereupon the street works authority may appropriate the said premises subject to, and in accordance with, the provisions of section 163 of the Act of 1933, as if the said premises were land which was not required for the purpose for which it was acquired.

Recovery of
street works
charges where
owner
unknown.

(2) Where the county court makes an order under subsection (1) of this section the Lands Tribunal shall, for the purpose of determining the value of the said premises, nominate one of their members selected in accordance with subsection (6) of section 1 and section 3 of the Lands Tribunal Act, 1949, and that member nominated shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof, and the street works authority shall thereupon pay into court a sum equal to the amount of such

1949 c. 42.

PART IV
—*cont.*

valuation, after deduction of the amount of the final apportionment in respect of the said premises, with interest thereon for a period of six years at the rate of 5 per cent. per annum, or at such other rate as may have been fixed by order of the Minister of Housing and Local Government under section 212 of the Act of 1959 together with all costs and expenses reasonably incurred by the street works authority.

1965 c. 56.

(3) Any payment into court under subsection (2) of this section shall be made in accordance with section 25 of the Compulsory Purchase Act, 1965, and subsection (5) of section 9 of that Act shall apply to any such payment into court.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the street works authority in addition to any existing rights, powers and remedies for the recovery of expenses, and shall be exercisable by the street works authority in respect of all street works whether completed before or after the passing of this Act.

(5) In relation to a street works authority which is the council of an urban district this section shall have effect as if for reference to the code of 1892 there were substituted reference to the code of 1875 or the code of 1892, whichever shall be the appropriate code.

(6) In this section "street works" and "street works authority" have the same respective meanings as in section 213 of the Act of 1959 and "code of 1875" and "code of 1892" have the same respective meanings as in section 173 of that Act.

Power for rural district councils to contribute to cost of private street works.

31. A rural district council may at any time resolve to bear the whole or a portion of the expense of any street works in their district under the code of 1892, as defined in section 173 of the Act of 1959, and where a rural district council so resolve the liabilities of the owners of premises in respect of those expenses shall be treated as discharged, or as proportionately reduced, accordingly.

PART V

PUBLIC HEALTH AND HOUSING

Refuse storage accommodation.

32.—(1) In this section—

"building" includes a part of a building;

"refuse storage accommodation" in relation to a building means accommodation for the storage of dustbins containing or intended to contain the house refuse arising from the use or occupation of the building together with satisfactory means of access to a street.

As from the appointed day every building to which this section applies shall be provided with refuse storage accommodation approved by the local authority and in considering as respects each building whether reasonable accommodation as aforesaid is not provided or proposed to be provided regard shall be had to the character and situation of such building.

This section applies to a building in the county as respects structural works of a structural nature for any of the following cases are begun on or after 1st April, 1969 (that is to say)

- (a) the erection or rebuilding of the building;
- (b) altering or adapting a building not previously used for human habitation to enable it to be used for that purpose;
- (c) dividing the building into flats or tenements;
- (d) altering or adapting the building if the refuse storage accommodation thereat is directly or indirectly affected by the structural works carried out for that purpose.

(4) (a) Where a building to which this section applies is not or (as the case may be) is not proposed to be provided with refuse storage accommodation approved by the local authority the local authority may serve on the owner or occupier thereof a notice requiring him to carry out such works and do such other things as may be necessary to secure that the building is provided with refuse storage accommodation approved by the local authority.

(b) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this subsection as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that for the purposes of such application the said section 290 shall have effect as if for paragraph (a) of subsection (3) thereof there were substituted the following paragraph:—

“(a) that the notice or requirement is unreasonable;”.

(5) (a) Where there is submitted to a local authority particulars of proposals for the provision of refuse storage accommodation or for the alteration of such accommodation the local authority shall be deemed to have approved such accommodation or alteration unless within two months of the submission of the particulars or within such longer period as may be agreed in writing between the local authority and the applicant the local authority serve notice on him that they refuse to give their approval to the proposals or approve them subject to such modifications or conditions as may be specified in the notice.

PART V
—cont.

(b) Where a local authority refuse to give approval under this subsection to any proposals for the provision or alteration of refuse storage accommodation or give such approval subject to modifications or conditions they shall state the grounds of their decision and any person aggrieved thereby may appeal to a magistrates' court.

(6) Nothing in this section shall authorise or require—

- (a) the carrying out of any work in contravention of the building regulations or of any consent or any term or condition attached to a consent granted under the said regulations; or
- (b) the carrying out of any development within the meaning of the Act of 1962 otherwise than in accordance with the provisions of that Act or of any permission or condition attached to a permission granted under or by virtue of that Act.

Amendment
of section 135
of the Act
of 1953.

33. In section 135 (Cost of provision, maintenance and renewal of dustbins) of the Act of 1953 there shall be inserted after the word "apply" in subsection (2) of that section the words "in relation to buildings which are dwelling-houses".

Supply of
water to
premises
where supply
cut off.

34.—(1) Where any statutory water undertakers—

- (a) by reason of the defective state of a supply pipe or the absence or defective state of any water fittings; or
- (b) in any other case, by reason of the failure of a supply pipe or any water fittings to comply with any requirement imposed by or under any enactment;

cease to supply with water any building used for human habitation or as a place where persons are employed, the local authority may, after giving notice to the owner of the building of their intention so to do, execute such works, provide such fittings and do such other incidental things as may be necessary to secure that the supply of water to the building is restored by the statutory water undertakers and the expenses reasonably incurred by the local authority in so doing shall be recoverable from the owner of the building.

(2) Where any building has been let for the purpose of being used for human habitation or as a place where persons are employed it shall be deemed for the purposes of this section to be occupied and used for such purposes.

(3) In any proceedings for the recovery of expenses under this section the court may inquire whether the whole or any part of

PART V
—cont.

the expenses should, instead of being borne by the person from whom they are sought to be recovered, be borne by the occupier of the building in respect of which they were incurred, and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne or as to the apportionment between any such persons of their liability to bear the expenses:

Provided that the court shall not under this subsection order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person at the instance of the defendant has had due notice of the proceedings and an opportunity of being heard.

(4) In this section—

“building” means a building in a district and includes any part of such a building if such part is occupied as a separate hereditament;

“statutory water undertakers” has the same meaning as in the Water Act, 1945;

1945 c. 42.

“supply pipe” and “water fittings” have the same meanings as in the Third Schedule to the said Act of 1945.

35.—(1) The Council may enter into and carry into effect agreements with any local authority for the provision by that authority of houses for the purpose of providing for the rehousing of persons displaced from any land acquired by the Council under any enactment, and any such agreement may provide for the making of contributions by the Council towards the whole or any part of the expense thereby incurred by the local authority. Power as to rehousing.

(2) In this section “local authority” means the council of any administrative county, county borough or county district.

36. In its application to the county the Act of 1957 shall have effect as if— Amendment of certain provisions of Act of 1957, relating to closing orders.

(1) in subsection (2) of section 27 the following proviso were added thereto:—

“Provided that where the local authority are satisfied that part of any premises as respects which a closing order has been made has been rendered fit for human habitation, they may determine the order so far as it relates to that part.”;

PART V
—cont.

- (2) in paragraph (b) of subsection (3) of section 27 after the word "determine" there were inserted the words "in whole or in part";
- (3) in subsection (5) of section 27 there were added the following words:—
"or by the owner of part of any premises where such a closing order is in force in respect of that part";
- (4) in section 28 the following proviso were added:—
"Provided that a demolition order shall not be made by virtue of this section in relation to any premises in respect of which a closing order has been determined so far as it relates to a part of those premises."

Securing of
unoccupied
houses under
Act of 1957.

37.—(1) (a) Before accepting, under section 16 of the Act of 1957, an undertaking that any house will not be used for human habitation until the authority cancel the undertaking, a local authority may require an additional undertaking that, until the first-mentioned undertaking is cancelled, the premises will be effectively secured so as to prevent, so far as is reasonably practicable, the entry into the premises, or any part thereof, when unoccupied, of any person other than a person authorised by the owner or the local authority.

(b) Section 17 of the Act of 1957 shall, subject to any necessary modifications, apply in relation to any such additional undertaking as it applies in relation to such undertaking as is mentioned in the said section 16.

(2) Where—

- (a) by a closing order made under sections 17, 18, 26 or 33 of the Act of 1957 a local authority have ordered any house or building, or any part thereof, to be closed; or
- (b) by a clearance order made under section 44 of the Act of 1957 a local authority have ordered any building, or any part thereof, to be vacated and in such a case it appears to the local authority that the building, or the part thereof (as the case may be), will not be, or is unlikely to be, demolished within six weeks from the date when, in pursuance of the order, the premises are vacated;

they may, by notice to the owner of the house or building, require him, within such reasonable time as may be specified in the notice (not being less than seven days from the date when the notice becomes operative), to do such things in relation to the house or building or the part thereof (as the case may be), as are reasonably required effectively to secure it so as to prevent the entry into the premises, when unoccupied, of any person other than a person authorised by the owner or the local authority.

PART V
—cont.

(3) A notice under subsection (2) of this section shall not require a person, when he has effectively secured a house or building, or any part thereof, as may be required in the notice, to keep the premises so secured but, if at any time after the premises have been so secured it appears to the local authority that they are no longer so secured, they may, after giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building, or part thereof, as will so secure the premises against entry.

(4) Sections 10, 11 and 37 of the Act of 1957 shall, subject to any necessary modification, apply in relation to a notice under subsection (2) of this section.

(5) A notice shall not be given under subsection (2) of this section in any case where the local authority have approved the use for any purpose of any premises which have been ordered to be closed so long as the premises are used for that purpose.

(6) Nothing in this section shall prejudice the powers of a local authority to take steps to deal with any dangerous building under section 25 of the Public Health Act, 1961.

1961 c. 64.

(7) In this section—

“house” has the same meaning as in the Act of 1957;

“owner” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

38.—(1) Any expenses adjudged to be payable to a local authority consequent upon the exercise of their powers under subsection (1) of section 23 or subsection (3) of section 44 of the Act of 1957 shall until recovered be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein.

Expenses of
executing
demolition
orders, etc.

(2) A local authority shall for the purpose of enforcing a charge under this section have all the powers and remedies under the Law of Property Act, 1925, and otherwise of mortgagees by deed having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

1925 c. 20.

39. The rent for the time being recoverable by the owning authority under a tenancy of any premises forming part of any housing accommodation belonging to the owning authority may be increased or reduced, or the terms and conditions of that

Notice of
variation of
rent, etc.

PART V
—cont.

tenancy may be varied, amended or added to, by the service by the owning authority on the tenant of a notice specifying the amount of the increase or reduction of rent, or the variation or amendment of, or addition to, the terms and conditions, whether or not such notice is accompanied by a notice to quit, but such increase, reduction, variation, amendment or addition shall not take effect until such date as may be specified in the notice not being earlier than—

- (a) four weeks after the service thereof; or
- (b) the date on which, if this section had not been enacted, the tenancy could have been terminated by serving a notice to quit on the date of the service of the notice under this section;

whichever shall be the later:

Provided that if, before the date specified in the notice, the tenant upon whom such notice has been served serves a counter-notice upon the owning authority requiring them to treat the notice as a notice to quit, the notice shall be deemed to be a notice to quit the premises on that date.

In this section “owning authority” means the Council, a local authority or the Cheshire Police Authority, as the case may be.

PART VI

FIRE PROTECTION AND PUBLIC SAFETY

Parts of
buildings
used for
storage of
flammable
substances.

40.—(1) This section applies to—

- (a) any building of which part (hereafter in this section referred to as “the storage part of the building”) is used, or intended to be used, for the storage for the purposes of sale or trade of any substance to which this section applies and part is used, or intended to be used, as a habitable room or a place in which any person works, if the part used, or intended to be used, as a habitable room or a place in which a person works communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;

- (b) any substance which is highly flammable:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act, 1928, or the Celluloid and Cinematograph Act, 1922, apply; or

1928 c. 32.
1922 c. 35.

PART VI
—cont.

any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or

) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

If the Council are of the opinion that the storage for the purposes of sale or trade of any substances to which this section applies in any part of a building to which this section applies in the county is—

) in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or

(b) in such manner as to be liable to cause fire or explosion; and may by notice require the occupier of any part of the building to provide or fit (as the case may be) within such reasonable period as may be specified in the notice—

(i) appropriate means of giving warning, in the case of fire, to persons occupying the building and for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;

(ii) means of ready escape in case of fire from the storage part of the building and any other part of the building, being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;

(iii) notices in or on the storage part of the building indicating the existence of danger from fire.

The occupier of any building who—

a) by reason of a restriction affecting his interest in the building, is unable to execute works for the purpose of complying with a notice given by the Council under subsection (2) of this section; or

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—cont.

- (b) considers that the owner of the building, or any other person having an interest therein, should contribute towards the cost of the execution of works as aforesaid, and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with the notice or, as the case may be, to direct the owner of the building, or any other person who appears to the court to have an interest therein, to contribute towards the cost of such works as aforesaid such an amount as appears to the court, in all the circumstances of the case, to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) Upon compliance with a notice under subsection (2) of this section the Council shall forthwith issue to the person to whom the notice was given a certificate of such compliance.

(5) (a) If, after a certificate of compliance with a notice under subsection (2) of this section has been granted by the Council—

- (i) any material extension or material structural alteration of the building to which the certificate relates is intended to be made; or
- (ii) it is intended materially to increase the storage in the said building of any substance to which this section applies;

the occupier of any part of the building shall not less than twenty-one days before any such extension or alteration is made or any such storage is increased give notice of such intention to the Council who may serve a further notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Council shall amend the certificate or grant a new certificate in respect of the building, but if anything required to be provided in accordance with a further notice served under this subsection is not provided within such reasonable time as may be specified in the notice, the Council may cancel the certificate previously granted in respect of the building.

(6) All means of escape, fire alarms and means of extinguishing fire provided or fitted (as the case may be) under the requirements of sub-paragraphs (i) and (ii) of paragraph (b) of subsection (2) of this section shall be properly maintained and kept free from obstruction.

For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936, as applied by this Act, the provisions of this section shall be provisions which it is the duty of the Council to enforce.

(a) An authorised officer of the Council may, in respect of any premises which he has entered in pursuance of the powers conferred by the said section 287, purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a nuisance to which this section applies.

The result of any test of a sample taken by an authorised officer of the Council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (9) of this section, unless the following requirements have been complied with, that is to say, the said officer shall forthwith after taking the sample notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container, which shall be sealed up and marked, and shall—

- i) deliver one part to the occupier of the building;
- ii) retain one part for future comparison; and
- iii) if he thinks fit to have a test made, submit one part to be tested.

(9) (a) Any person aggrieved by a requirement of the Council under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the Council to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

PART VI
—cont.

(11) In this section “ building ” where used in relation to the storage of substances therein includes the curtilage of the building and “ habitable room ” includes a room or place to which the public resort.

1961 c. 34.
1963 c. 41.
1964 c. 26.
1967 c. 19.

(12) Nothing in this section shall apply to premises which are subject to the Factories Act, 1961, the Offices, Shops and Railway Premises Act, 1963, the Licensing Act, 1964, or the Private Places of Entertainment (Licensing) Act, 1967, or regulations made under those Acts.

Fire
precautions
in certain
large
buildings.

41.—(1) No building of the warehouse class and no building used or intended to be used for the purpose of trade or manufacture shall be erected in the county of a cubic extent exceeding 250,000 cubic feet or extended to exceed that extent unless (in accordance with plans and particulars submitted in accordance with building regulations and approved for the purposes of this section after consultation with the fire authority by the local authority of the district in which the building is to be erected or is situate) it is—

- (a) provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (b) fitted with automatic fire alarms and a fire extinguishing system or with either such alarms or such system to the satisfaction of the local authority after consultation with the fire authority:

Provided that—

- (i) nothing in paragraph (a) of this subsection shall apply to a factory to which section 40 of the Factories Act, 1961, applies, to buildings to which section 59 of the Act of 1936 applies or to premises to which the Offices, Shops and Railway Premises Act, 1963, applies;
- (ii) nothing in paragraph (b) of this subsection so far as it relates to the provision of fire alarms shall apply to a factory to which subsection (7) of section 48 of the said Act of 1961 applies or to premises to which section 34 of the said Act of 1963 applies, nor so far as it relates to the provision of a fire extinguishing system shall the said paragraph apply to a factory to which subsection (1) of section 51 of the said Act of 1961 applies or to premises to which the said Act of 1963 applies.

(2) (a) The person proposing to erect or cause to be erected or extend or cause to be extended any building to which subsection (1) of this section applies shall, when submitting plans

and particulars in accordance with building regulations, deposit the local authority particulars showing how it is proposed to comply with the requirements of paragraphs (a) and (b) of subsection (1) of this section.

A local authority at any time within a period of two months after the deposit of the particulars irrespective of any decision on building regulations—

- i) may refuse to approve them; or
- ii) may approve them subject to such conditions (if any) as, after consultation with the fire authority, they think fit.

Where a local authority refuse to approve the particulars or approve them subject to conditions they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions:

Provided that if within the period of two months mentioned in paragraph (b) of this subsection the local authority fail to give such notice they shall be deemed to have approved the said particulars.

(a) If any building to which the preceding subsections of this section are applicable is erected or extended in contravention of any of the requirements of paragraph (a) or (b) of subsection (1) of this section the local authority, without prejudice to their rights to take proceedings for penalties in respect of the contravention, may by notice require the person erecting or causing to be erected the building or extension either to pull down and remove it or, if he so elects, to effect such alterations therein as may be necessary in order to comply with the said requirements.

The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

All means of escape, fire alarms and fire extinguishing systems provided or fitted, as the case may be, under the requirements of paragraphs (a) and (b) of subsection (1) of this section shall be properly maintained and kept free from obstruction

(5) (a) A person who erects or causes to be erected or extends or causes to be extended a building in contravention of any of the provisions of this section shall be guilty of an offence under this section.

The occupier of any premises who fails to maintain the means of escape, fire alarms and fire extinguishing systems

PART VI
—cont.

provided or fitted, as the case may be, under the requirements of paragraphs (a) and (b) of subsection (1) of this section, or to keep them free from obstruction, shall be guilty of an offence under this section.

(c) A person who commits an offence under this section shall on summary conviction be liable to a fine not exceeding fifty pounds and to a daily fine not exceeding ten pounds.

(6) Any person aggrieved by—

- (a) a requirement of a local authority; or
- (b) a refusal by a local authority to approve particulars; or
- (c) a condition subject to which approval of particulars is given by a local authority;

under subsection (1) or (2) of this section may appeal to a magistrates' court and on any such appeal the court may confirm, reverse or vary such requirement, refusal or condition.

(7) Any member of the fire brigade of the county who is duly authorised for the purpose shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter at all reasonable times any building to which subsections (1) to (3) of this section apply—

- (a) for the purpose of ascertaining whether there is, or has been, in or in connection with the building any contravention of the provisions of this section;
- (b) for the purpose of ascertaining whether or not circumstances exist which would authorise a local authority to take any action under this section.

(8) The provisions of subsections (2), (3) and (4) of section 28 of the Act of 1936 shall apply to entry into a building for the purposes of subsection (7) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(9) Nothing in this section shall apply to any building—

- (a) in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or
- (b) exempted from the provisions of Part II of the Act of 1936 with respect to building regulations by paragraph (b) of section 71 of that Act.

(10) Any reference in this section to plans deposited in accordance with building regulations shall be construed as including a reference to any sections, specifications and written particulars deposited with the plans in accordance with the regulations or this section.

PART VI
—cont.

42.—(1) Where plans for the erection of a building are in accordance with building regulations deposited with a local authority, the local authority shall reject the plans if they show—

Building plans: access for fire brigade.

that the building will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be fought effectively; or

that the building will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be fought effectively.

(2) Where plans for the extension of a building are in accordance with building regulations deposited with a local authority, the local authority shall reject the plans if they show—

that the extension will be such as to affect the adequacy of the means of access by the fire brigade to the building and that the building as extended will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be fought effectively; or

(b) that the extension will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be fought effectively.

(3) A local authority shall consult with the fire authority before rejecting any plans in accordance with the provisions of subsection (1) or (2) of this section.

(4) In this section “access by the fire brigade” means access by members of one or more fire brigades and their appliances, and references to a neighbouring building are, in relation to a neighbouring building for the erection, alteration or extension of which plans have been passed, references to the neighbouring building as erected, altered or extended in accordance with those plans.

(5) If a local authority reject the plans under the authority of this section, the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(6) Any question arising under this section between a local authority and the person by whom, or on whose behalf, plans are deposited as to whether the local authority ought to pass the plans may, on the application of that person, be determined by a magistrates’ court.

PART VI
—cont.Firemen's
switches for
luminous
tube signs.

43.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding 650 volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the coming into operation of this section apparatus to which this section applies in the county shall be provided with a cut-off switch on the low-voltage side of the transformer, and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the Council may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to install apparatus to which this section applies, the consumer shall give notice to the Council showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the date of the coming into operation of this section, the consumer shall, not less than fourteen days before that date, give notice to the Council—

(a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;

(b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Council as required by subsection (3) or subsection (4) of this section, the proposed or, as the case may be, actual position, colouring or marking of the switch shall be deemed to satisfy the requirements of the Council unless, within ten days from the date of the service of the notice if the notice is served under subsection (3) of this section, or within twenty-one days from the date of the service of the notice if the notice is served under subsection (4) of this section, the Council have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the Council.

A person aggrieved by a counter-notice served by the Council under subsection (5) of this section may appeal to a magistrates' court and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

If the owner or the occupier of any premises where apparatus to which this section applies is installed does not comply with subsection (2) of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

(9) If any person fails to give notice as required by subsection (3) or subsection (4) of this section, he shall be liable to a fine not exceeding twenty pounds.

(10) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations, 1937, or any regulations that may be made under section 60 of the Electricity Act, 1947.

1947 c. 54

(11) This section shall not apply to apparatus installed on or in premises, or any part of premises, in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

Provided that where any luminous tube sign to which, but for this subsection, this section would apply is proposed to be fitted on or in any such premises, the owner or occupier thereof shall, before such apparatus is fitted, give notice under subsection (3) of this section to the Council informing them of the position in which it is proposed to place the cut-off switch.

(12) This section shall come into operation in the county on the 1st day of October, 1968.

(13) (a) The Council shall, as soon as may be after the passing of this Act, cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county, and otherwise in such manner as the Council think fit.

(b) In any proceedings it shall be presumed, unless the contrary is proved, that the provisions of this subsection have been complied with.

44.—(1) As from the appointed day any person intending to install or place oil-burning equipment in any building in a district, whether the building is erected before or after the passing of this Act, or on any land in the district, shall give not less than fourteen days' notice to the local authority of his intention so to do. Oil-burning equipment.

PART VI
—cont.

(2) (a) The Council, if requested by the local authority to do so, may make byelaws for securing that, in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws, proper arrangements will be made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land as aforesaid, the works, apparatus and fittings and fire-fighting appliances to be provided and the mode of arrangement and requirements as to maintenance of any such works, apparatus, fittings and appliances.

(c) As respects byelaws made under this section, the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Secretary of State.

(d) Section 250 of the Act of 1933 shall in its application to byelaws made under this section be construed as if it had been amended by the insertion of the words "or confirm with modifications" after the word "confirm" in the second place where that word occurs in subsection (6) thereof.

(3) (a) Any oil-burning equipment installed or placed in any building or on any land in a district in accordance with plans and specifications submitted to, and passed by, the local authority, shall for the purposes only of this section, be deemed to be approved by the local authority as complying with the appropriate specification for such equipment contained in byelaws made under this section in respect of all matters shown in the plans and specifications so passed.

(b) If the local authority do not, within two months from the submission of plans and specifications of any equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) If, in relation to the installation or placing of any oil-burning equipment in any building or on any land in a district, the local authority are satisfied, after consultation with the fire authority, that proper arrangements will be made for preventing or reducing danger from fire, they may, on the application of the person proposing to install or place such equipment, approve the installation or placing of the equipment notwithstanding that it may not comply with the appropriate specification for such equipment contained in byelaws made under this section.

(5) (a) Any person aggrieved by the refusal of the local authority to approve the installation or placing of any equipment

under subsection (4) of this section may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State.

Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the local authority against which the appeal is brought.

The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the local authority made under the byelaws.

(a) If any person installs oil-burning equipment in any building or on any land in a district without giving notice to the local authority in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section other than pursuant to an approval granted under subsection (4) of this section he shall be liable to a fine not exceeding fifty pounds and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the local authority;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(7) Nothing in this section or any byelaws made thereunder shall apply to—

(a) the installation of any oil-burning equipment—

(i) in a house if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity of less than 1,200 gallons; or

(ii) in any other premises if such tank or tanks has or have a total capacity of less than 1,000 gallons; or

(b) the installation of any oil-burning equipment in any building in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or

(c) the installation of any oil-burning equipment by the British Railways Board, the Central Electricity Generating Board, the Merseyside and North Wales, the

PART VI
—cont.

Midlands and the North Western Electricity Boards and the North Western and the West Midlands Gas Boards for the purposes of their respective undertakings:

Provided that the exemption conferred by virtue of this paragraph shall not extend—

(i) to a house; or

(ii) to a building used as offices or showrooms other than, in the case of the British Railways Board, a building so used which forms part of a railway station.

1961 c. 34.
1963 c. 41.

(8) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act, 1961, or the Offices, Shops and Railway Premises Act, 1963, apply on the coming into force in relation to those premises of regulations made under either of those Acts and relating to the same subject-matter as this section.

(9) In this section—

“ apparatus and fittings ” includes pipes and pipe-fittings, taps, valves, pumps, gauges, vessels, fans and filters;

“ boiler ” means a boiler, furnace, heater, oven or similar plant;

“ house ” means a dwelling-house, whether a private dwelling-house or not, and includes a flat and maisonette;

“ oil-burning equipment ” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catchpits, and any other equipment used for or in connection with the heating of the boiler;

“ storage tank ” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler.

Saving for
certain
enactments.

45. Nothing in the foregoing sections of this Part of this Act shall affect the operation of the Fire Services Acts, 1947 to 1959, the Factories Act, 1961, or the Offices, Shops and Railway Premises Act, 1963, or any regulations or orders made thereunder or building regulations.

Disposal of
dangerous
containers.

46.—(1) No person shall within the county dispose of or deposit any container (including a container attached to a vehicle or machine) which has been used for the storage of flammable explosive or poisonous substance and is no longer used for that

purpose unless he takes all such steps as may be reasonably necessary to prevent danger from the container to any person or property.

PART VI
—cont.

(2) If any person contravenes the provisions of subsection (1) of this section, he shall be liable to a fine not exceeding twenty pounds, and the local authority may take such steps as may be reasonably necessary to prevent danger from the container and may recover from that person the expenses incurred by them in so doing:

Provided that no proceedings shall be instituted for an offence under this section if the disposal or deposit of the container contravenes section 19 of the Civic Amenities Act, 1967.

1967 c. 69.

(3) In this section "poisonous substance" means a substance specified in the Poisons List for the time being in force under section 17 of the Pharmacy and Poisons Act, 1933.

1933 c. 25.

47.—(1) Where there is on any land in the county a pond, well, mineshaft, quarry or other excavation which, by reason of its being unfenced or inadequately fenced or otherwise inadequately protected, constitutes a source of danger to children or other persons, the Council may pay, or contribute to the payment of, any expenses incurred in the execution, by any person who has the right to do so, of any works of repair, protection or enclosure which may be required to obviate the danger:

Protection of
dangerous
ponds and
excavations.

Provided that, in the case of any such excavation in respect of which any person may, under section 144 of the Act of 1959 or section 151 of the Mines and Quarries Act, 1954, be required to execute works to obviate the danger, the Council shall only pay, or contribute to the payment of, the expenses of executing such works where they are satisfied that it would be unreasonable in the circumstances of the case for such person to be required to bear the expense, or the whole of the expense (as the case may be), of executing such works.

1954 c. 70.

(2) If in the case of any such pond, well, mineshaft, quarry or other excavation as aforesaid on any land in the county—

(a) the Council are unable, after making reasonable inquiry, to ascertain the name and address of the owner or occupier of the land; or

(b) the Council have, by notice given to the owner or occupier of the land, requested the execution of such works of repair, protection or enclosure as they may consider necessary to obviate the danger and, despite an offer made by the Council to pay or contribute to the payment of any expenses incurred by the owner or occupier in

PART VI
—cont.

the execution of such works, the works are not executed within such reasonable time thereafter as may be necessary for the purpose;

the Council may, subject to the provisions of subsection (3) of this section, themselves execute such works at their own expense.

(3) (a) Where, in a case referred to in paragraph (b) of subsection (2) of this section, the Council propose themselves to execute works on any land they shall, before carrying the proposal into effect, serve notice on the owner or occupier of the land specifying the place where they propose to execute such works and the nature of the works proposed and the period, which shall not be less than twenty-eight days, within which notice of objection to the proposal may be sent in writing to the Council, and including notice of the right of appeal under paragraphs (b) and (c) of this subsection.

(b) The Council shall consider any notice of objection sent to them by the owner or occupier of the land within the period so specified and give notice of their decision on the objection to the person by whom it was made.

(c) If that person is aggrieved by the decision of the Council he may, within twenty-one days after receiving notice thereof, appeal to a magistrates' court, and the court shall have power to make such order in the matter as it considers reasonable.

(4) If in pursuance of subsection (2) of this section, or of an order of a court made under paragraph (c) of subsection (3) of this section, the Council themselves execute works of repair, protection or enclosure on any land, they shall, unless otherwise agreed in writing between the Council and the owner or occupier of the land and unless otherwise provided in any such order of the court, maintain those works.

(5) This section shall apply to a local authority and to a parish council and for that purpose shall have effect as if for references therein to the Council and to the county there were substituted references to the local authority and to their district respectively or (as the case may be) to a parish council and to their parish respectively.

Removal,
etc., of
dangerous
trees.

48.—(1) If it appears to a local authority that for the prevention of danger to persons generally or to property, any tree in their district should be lopped, cut, removed or felled, the local authority may serve a notice on the owner or occupier of the premises on which the tree is growing or situated, requiring him within twenty-one days to lop, cut, remove or fell the tree or execute such other works as the local authority may consider necessary to prevent the danger.

PART VI
—cont.

The provisions of section 276 of the Act of 1936 relating to the sale of certain materials shall for the purposes of this section have effect as if the expression "materials" included timber.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

provided that for the purposes of such application the said section 290 shall have effect as if—

(a) for paragraph (a) of subsection (3) thereof there were substituted the following paragraph:—

"(a) that the notice or requirement is unreasonable;" and

(b) in subsection (6) thereof the words after "in so doing" were omitted.

(1) An authority may, on any land which is for the time being owned by them or is under their control, or with the consent of the occupier on any other land, provide and maintain apparatus for use in the rescue of persons in danger of drowning or those who have been injured or otherwise incapacitated while engaged in mountaineering or rock-climbing or in any other activity involving danger to life or limb, and structures for the storage or safe keeping of any such apparatus.

(2) An authority may contribute to the expenses incurred by any other person in providing in their area any apparatus or structure as aforesaid.

(3) An authority may combine with or contribute to the expenses of any other authority in exercising their powers under this section.

(4) In this section "authority" means the Council, a local authority or a parish council and "area" means in relation to the Council, the county, in relation to a local authority, their district and in relation to a parish council, their parish.

PART VII

TATTOOISTS

(1) As from the appointed day a person shall not carry on the business of a person who tattoos or offers to tattoo members of the public on premises in a district occupied by him unless he is registered by the local authority under this section and the premises are so registered.

PART VII
—cont.

(2) On application in that behalf made to the local authority by any person for registration of the applicant or of any premises and (if the application relates to premises) on his furnishing them with particulars of the premises the local authority shall register the applicant or the premises and issue to the applicant a certificate of registration.

(3) The local authority may make byelaws for the purpose of securing—

(a) the cleanliness of premises in their district registered under this section and of the instruments, towels, materials and equipment used therein; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) If any person carries on business in contravention of subsection (1) of this section he shall be liable to a fine not exceeding twenty pounds and a daily fine not exceeding five pounds.

(5) If any person contravenes any byelaw made under subsection (3) of this section he shall be liable to a fine not exceeding five pounds, and if he is registered the court by which he is convicted may instead of, or in addition to, imposing a fine, order the suspension or cancellation of his registration and of the registration of the premises in which the offence was committed if they are occupied by him.

(6) A court ordering the suspension or cancellation of registration under the last foregoing subsection may suspend the operation of the order until the fourteen days prescribed by subsection (1) of section 84 of the Magistrates' Courts Act, 1952, for giving notice of appeal to quarter sessions have expired:

1952 c. 55.

Provided that if notice of appeal is given within the said fourteen days an order made under this subsection shall be suspended until the appeal is finally determined or abandoned.

(7) Where the registration of any person is cancelled by order of a court under subsection (5) of this section—

(a) he shall within seven days deliver up to the local authority the cancelled certificate of registration and if he fails to do so he shall be liable to a fine not exceeding twenty shillings and a daily fine not exceeding ten shillings; and

(b) he shall not again be registered by the local authority under this section except in pursuance of a further order of a magistrates' court made on his application.

The occupier of premises registered under this section shall display a copy of the said byelaws and of the certificate of registration in the premises and if he fails to do so he shall be liable to a fine not exceeding twenty shillings and a daily fine not exceeding ten shillings.

PART VII
—cont.

In respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister.

For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

It shall be an offence to tattoo a person under the age of eighteen years at any premises in the county except with the consent of his parent or guardian and any person committing such an offence shall be liable to a fine not exceeding fifty pounds, or, in the case of a second or subsequent conviction for an offence under this section, to imprisonment for a term not exceeding three months or a fine not exceeding one hundred pounds, or

Prohibition
against
tattooing
young
persons.

PART VIII

FINANCE

52.—(1) The Council may borrow—

Power to
borrow.

(a) such sums as may be necessary for any of the purposes of this Act ;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

53. In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

Power to
Council to
raise money
by issue of
bills.

(1) for any purpose for which the Council are authorised to borrow;

PART VIII
—cont.

- (2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called "Cheshire County Council bills" and in this section referred to collectively as "bills" and separately as "a bill") subject to and in accordance with the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill;
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable;
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine;
- (d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council;
- (e) The Council may make regulations providing for—
- (i) the preparation and form and the mode of issue, payment and cancellation of bills;
 - (ii) the issue of a new bill in lieu of one defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
 - (iv) the giving of a proper discharge on the payment of a bill; and
 - (v) amending or revoking any regulations previously made or deemed to have been made under this paragraph;
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised;
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on

bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

PART VIII
—cont.

(i) the sum of four million pounds; or

(ii) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;

whichever is the greater:

Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:

The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

4. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer. Power to Council to raise money by issue of bearer bonds.

5.—(1) Any method by which the Council are empowered by any enactment (including the last two foregoing sections) to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency. Power to Council to raise money abroad.

(2) (a) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(b) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

56. It shall not be lawful to exercise the powers of borrowing conferred by the foregoing provisions of this Part of this Act Saving for powers of Treasury.

PART VIII
—cont.
1946 c. 58.

otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Discontinuance
of insurance
fund.

57.—(1) The Council may by resolution either discontinue the insurance fund established under section 187 (General insurance fund) of the Act of 1953 or exclude any risks from those for which the fund is intended to provide.

(2) If the Council pass a resolution under subsection (1) of this section the moneys for the time being in the insurance fund or (as the case may be) so much of those moneys as the Council may determine shall be transferred to the county fund and shall be apportioned between the several accounts of that fund in such proportions as the Council consider equitable.

(3) Notwithstanding the passing of a resolution under subsection (1) of this section the Council may at any time thereafter again establish the insurance fund in accordance with the provisions of the said section 187 or (as the case may be) include in the risks for which the fund is intended to provide any risk previously excluded.

Interest and
dividends by
post.

58.—(1) The Council may give notice to the registered holder of an authorised security that they intend to send interest or dividends on the security to him by post if he does not object; and unless the registered holder within fourteen days of the date of receipt of the notice notifies the Council that he objects, the Council may from time to time send orders for the payment of interest and dividend warrants to him by post at the address in the register.

(2) If the registered holder of an authorised security notifies the Council that he wishes interest or dividends on the security to be sent to another person at an address specified in the notice, the Council may from time to time send orders for the payment of interest, or dividend warrants, to that person by post at that address.

(3) For the purposes of this section the Council may treat as the registered holder of an authorised security that one of the joint holders of the security who is first named in the register, or such other of them as the joint holders may in writing direct.

(4) The posting by the Council of an order for the payment of interest, or a dividend warrant, in pursuance of this section shall discharge the Council from any obligation to deliver the order or warrant to the holder of the security.

An order or warrant sent by post in pursuance of this section shall be deemed a cheque; and the Council shall in relation thereto be deemed a banker within the meaning of the Bills of Exchange Act, 1882.

PART VIII
—cont.

1882 c. 61.

(1) The Council may close any transfer books or the registers of transfers of authorised securities (other than stock) the whole of the period of thirty days, or any shorter consecutive period, next before the date on which interest on the authorised securities to which such transfer book or register relates is payable. Closing of registers.

(2) The persons who, on the date on which the transfer book or register is closed, are entered therein as holders of any security in class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

If any money is payable by the Council to any employee (other than wages or salary), or to any creditor, or to the holder of any authorised security, and the person entitled to such payment is a minor, the receipt of the guardian shall be a sufficient discharge to the Council. Receipt in case of minors.

(1) The Council may pay to any of their officers who acts in any of the following capacities:—

Officers acting as receivers, etc

(a) as the receiver appointed by an order made under Part VIII of the Mental Health Act, 1959;

1959 c. 72.

(b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Council;

(c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

the amount of any sum forfeited by him to the Crown or the Principal Probate Registrar or the amount of any payment which the officer is liable to make by reason of his acting in any such capacity as aforesaid.

(2) The Council may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in one of the capacities mentioned in subsection (1) of this section against any act, neglect or default, whether his own or that of any other person, occurring in the course of the receivership or administration.

PART VIII
—cont.

(3) Any payments which the Council have power to make under the provisions of subsection (1) of this section, and any of the risks referred to in subsection (2) of this section, may for the purposes of section 187 (General insurance fund) of the Act of 1953 be treated as risks against which the Council would ordinarily insure and that section shall be construed accordingly.

Extension of
power to
invest
superannuation
fund moneys.

1937 c. 68.

1961 c. 62.

62.—(1) In its application to the investment by the Council under subsection (3) of section 21 of the Local Government Superannuation Act, 1937, of any moneys forming part of but not for the time being required to meet payments out of the superannuation fund maintained by the Council under that Act the Trustee Investments Act, 1961, shall have effect as if—

(a) the following paragraphs were included in Part III (Wider-Range Investments) of Schedule 1 to that Act:—

1947 c. 14.

“ 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the Exchange Control Act, 1947, or in Canada or in the United States of America, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany.

5. In the purchase of freehold ground rents of freehold or leasehold land, messuages, tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof has at the time of making the investment at least sixty years to run.”;

(b) in Part IV (Supplemental) of the said schedule—

(i) in paragraph 1 there were inserted after the word “schedule” the words “other than those mentioned in paragraph 4 of the said Part III”;

(ii) after paragraph 2 there were inserted the following paragraph:—

“ 2A. The securities mentioned in paragraph of Part III of this Schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue).”.

(2) Notwithstanding anything in the said Act of 1961, if Council may invest any moneys referred to in subsection (1).

is section in any manner specified in Part III of Schedule 1 of the said Act of 1961, as amended by this section, and may from time to time vary any such investments:

PART VIII
—cont.

Provided that no such moneys as aforesaid shall be so invested any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the said superannuation fund.

All costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, shall be paid by the Council out of that fund. Expenses of investment of superannuation fund.

(1) The provisions of this Part of this Act mentioned in section (2) of this section shall apply to a local authority or a joint committee of local authorities established under section 2 of the Local Government Superannuation Act, 1937, and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted in the case of a local authority references to the local authority and to their district respectively and in the case of any such joint committee references to that committee and to the acts of the constituent authorities respectively, and subject both cases to any other necessary modifications. Application to certain authorities of provisions of Part VIII. 1937 c. 68

(2) The provisions hereinbefore referred to are the following:—

- Section 57 (Discontinuance of insurance fund);
- Section 58 (Interest and dividends by post);
- Section 59 (Closing of registers);
- Section 60 (Receipt in case of minors);
- Section 62 (Extension of power to invest superannuation fund moneys);
- Section 63 (Expenses of investment of superannuation fund).

PART IX

SUPERANNUATION

65.—(1) In this Part of this Act except as otherwise expressly provided or unless the context otherwise requires words and expressions to which meanings are assigned by the Act of 1937 etc. have the same respective meanings and— Interpretation of Part IX, of Part IX, etc.

“the Act of 1937” means the Local Government Superannuation Act, 1937;

PART IX
—cont.

“ death grant ”, “ superannuation benefit ” and “ transitional value ” have in relation to a contributor the meanings assigned to them respectively by the Regulations of 1954;

“ contributor ” means a contributor to the fund as respects whom the Council are the employing authority;

“ the fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937;

“ the principal Acts ” means the Local Government Superannuation Acts, 1937 to 1953;

“ the Regulations of 1954 ” means the Local Government Superannuation (Benefits) Regulations, 1954;

“ return of contributions ” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;

“ superannuation allowance ” includes a retirement pension and an injury allowance within the meaning of the Regulations of 1954.

(2) In sections 66 to 71 of this Act “ the new superannuation provisions ” means those sections, and this section.

(3) Without prejudice to the provisions of section 68 (Power to require designated sums to be paid to trustees), section 69 (Transfers of employment), section 70 (Application of the new superannuation provisions to other employing authorities) and section 71 (Application of the new superannuation provisions to local authorities) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of the new superannuation provisions subject to the extensions, modifications and applications of the said Acts and regulations contained in the new superannuation provisions.

Commencement of new superannuation provisions. Benefits in certain cases of premature retirement.

66. The new superannuation provisions shall come into force on 1st September, 1968.

67.—(1) Where, after the coming into force of the new superannuation provisions, the employment of a contributor who has attained the age of fifty-five years and completed ten years service is terminated in the interests of efficiency before he

attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

PART IX
—cont.

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of the new superannuation provisions, a contributor who has attained the age of fifty-five years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

(i) where a person has become entitled to a superannuation benefit by virtue of this subsection he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;

(ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person, who has become entitled to a superannuation benefit by virtue of subsection (2) of this section, dies before any payment on account of such benefit has been made to him, as from the date of his death, the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Local Government Superannuation Act, 1953, and of any rules made thereunder a 1953 c. 25.

PART IX
—cont.

person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section "pensionable age" in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment become entitled to a superannuation allowance by reason of having otherwise than under this section attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954 as the case may be.

Power to
require
designated
sums to be
paid to
trustees.

68.—(1) A contributor may at any time by notice in writing to the Council, given in such form as the Council may approve, direct that the provisions of this section shall apply to the amount (if any) which would otherwise be payable to his estate by way of death grant, and that any such amount (hereafter in this section and in Schedule 2 to this Act referred to as "the designated sum" instead of being paid to his estate shall be paid to such responsible persons (not being less than two nor more than four in number and hereafter in this section and in the said Schedule 2 referred to as "the trustees") as shall be appointed for that purpose by the Council, to be held upon the trusts and with and subject to the powers and provisions in force under the said Schedule 2 at the date of such direction.

(2) Any direction given in accordance with this section shall be effective and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts and with and subject to the powers and provisions in force under the said Schedule 2 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 2 may from time to time be varied by resolution of the Council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Council after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said Schedule 2, "contributor" includes any person who on or after the date of the coming into

PART IX
—cont.Transfers of
employment.

force of the new superannuation provisions is a contributor to the fund, and "former contributor" shall be construed accordingly.

(1) The Council may, in accordance with the provisions made by them for the purposes of this section—

as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as "the new employment") in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Minister and the Minister may approve any such scheme either with or without modifications after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Council under this section. E

PART IX
—cont.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in sub-paragraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in sub-paragraph (b) of that subsection.

1948 c. 33.

(6) In this section "interchange arrangements" means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act, 1948, or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

Application
of the new
superannuation
provisions
to other
employing
authorities.

70.—(1) An authority to whom this section applies may by resolution adopt all or any of the foregoing sections of the new superannuation provisions and Schedule 2 to this Act as from such date not being earlier than 1st September, 1968, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

- (a) any reference therein to a contributor was a reference to a contributor to the fund as respects whom the authority are the employing authority;
- (b) any reference to the Council in section 67, or paragraphs (a) and (b) of subsection (1) of section 69 was a reference to the authority.

(2) Where in pursuance of the foregoing subsection any provisions are adopted by an authority to whom this section applies as from a date later than 1st September, 1968, then any reference in those provisions to 1st September, 1968, or to the date of the coming into force of the new superannuation provisions shall be construed in relation to the authority as a reference to such later date.

(3) This section applies to—

- (i) a local authority which does not maintain a superannuation fund under Part I of the Act of 1937;
- (ii) the Cheshire Police Authority;
- (iii) the Cheshire Magistrates' Courts Committee;
- (iv) the Cheshire Probation and After-Care Committee;
- (v) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act, 1953;
- (vi) any other employing authority in relation to which the fund is the appropriate superannuation fund within the

1953 c. 25.

meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937.

PART IX
—cont.

(1) Where a local authority or a combination of local authorities maintains a superannuation fund under Part I of the Act of 1937 any such local authority may by resolution adopt all or any of the foregoing sections of the new superannuation provisions and Schedule 2 to this Act, as from such date, not being earlier than 1st September, 1968, as may be specified in such resolution, and where any provisions are so adopted they shall have effect in relation to that local authority as if—

Application of the new superannuation provisions to local authorities.

a) any reference therein to the Council was a reference to that local authority;

b) any reference therein to a contributor was a reference to a contributor to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937 and (except in section 68 (Power to require designated sums to be paid to trustees) of and Schedule 2 to this Act) as respects whom that local authority are the employing authority; and

c) any reference therein to the fund was a reference to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937.

(2) If any such local authority as is referred to in subsection (1) of this section adopts all or any of the foregoing sections of the new superannuation provisions and Schedule 2 to this Act, any other employing authority in relation to which that local authority or combination of local authorities are the appropriate administering authority may by resolution adopt all or any of the foregoing sections of the new superannuation provisions and Schedule 2 to this Act as from such date as may be specified in such resolution and where any provisions are so adopted any reference therein to a contributor shall be a reference to a contributor to the superannuation fund maintained by the local authority or combination of local authorities in relation to which such employing authority is the employing authority.

(2) (1) If a contributor is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct, the Council may transfer from the fund to the county fund an amount not exceeding the whole, or any part, of any contributions not returned to him, or paid to his wife or family under subsection (4) of section 10 of the Act of 1937, or the amount of loss suffered by the Council in consequence of the employee's offence or misconduct whichever is the less.

Transfer of certain sums from fund.

PART IX
—cont.

(2) If a contributory employee of an employing authority whose employees participate in the benefits of the fund is dismissed, resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct by reason of which the employing authority have suffered direct financial loss, the Council shall, on demand from the employing authority pay to them out of such fund an amount equal to so much of the employee's contributions to the fund as the employing authority have not directed to be returned to the employee or paid to his wife or family, or the amount of such loss suffered by the employing authority in consequence of his offence or misconduct whichever is the less:

1959 c. 47.

Provided that where a payment in lieu of contributions falls to be made in respect of the employee under the National Insurance Act, 1959, the Council shall not under this subsection be required to pay to the employing authority so much of the employee's contributions as amounts to one-half of such payment in lieu of contributions.

Exclusion of certain remuneration and service for superannuation purposes.

73.—(1) Subject to the provisions of subsection (4) of this section, subsection (2) of this section applies to employees—

- (a) who are contributory employees; or
- (b) who are teachers employed in contributory service within the meaning of the Teachers (Superannuation) Acts, 1918 to 1956; or
- (c) who are firemen participating in the Firemen's Pension Scheme; or
- (d) who by virtue of the provisions of rule 3 of the Superannuation (Policy and Local Government Schemes) Interchange Rules, 1948, are not subject to the provisions of the principal Acts;

and who are employed whole-time by the Council, a local authority, a magistrates' courts committee, a probation committee, the managers or governors of a voluntary school, a local valuation panel or any voluntary organisation, undertakers or other body approved by the Minister and who participate in the benefits of the fund.

(2) The salary, wages, fees and other payments paid or made (whether before or after the passing of this Act) to an employee to whom this subsection applies in respect of any part-time employment (not being employment the duties of which may be performed during the hours which such employee is normally required to devote to his ordinary whole-time employment) by the Council or any other authority or body the employees of which participate in the benefits of the fund—

- (a) as an instructor or other employee performing duties at, or for the purposes of, an evening institute or for the purposes of evening classes; or

PART IX
—cont.

as a warden of, or other employee performing duties at, or for the purposes of, a youth centre; or

2) as a civil defence instructor; or

in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment;

shall not be remuneration within the meaning of the principal Acts or of any other enactment affecting the fund, and the service of any such contributory employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

3) Where, before the passing of this Act, any person to whom subsection (2) of this section applies has paid any contribution or contributions to the fund which would not have been so paid if this section had been in force when such contribution or contributions were made, the Council shall repay to such person a sum equal to the amount of such contribution or contributions, together with compound interest thereon calculated to the date of repayment at the rate of three pounds per centum per annum with half-yearly rests.

(4) Subsection (2) of this section shall not apply to any such person as is referred to in subsection (3) of this section unless within six months after the passing of this Act he gives notice in writing to the Council that the said subsection (2) is to apply to him, whereupon that subsection shall apply to him as if this Act had come into force on the date of the receipt by the Council of such notice.

74.—(1) Section 18 of the Local Government Superannuation Act 1953, in its application to the county shall have effect as if:—

Extension of powers of Council to grant gratuities to widows and dependants of former employees. 1953 c. 25.

(i) for the expression “to the widow or any other dependant” in subsections (1) and (2) there were substituted the words “to a dependant”;

(ii) after sub-paragraph (c) of subsection (1) there were inserted the following new paragraph—

“(d) partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of twenty-one years:

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid”.

2) Subsection (1) of the said section 18 (as amended by the last foregoing subsection), shall apply to a dependant of a former

PART IX
— cont.

employee of the Council who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

Gratuities
to non-
teaching staff
in voluntary
schools.
1953 c. 25.

75. For the purposes of section 18 of the Local Government Superannuation Act, 1953, as applied to the Council, a person employed in a voluntary school in the county, otherwise than as a teacher, shall be deemed to be employed by the Council, and the Council may grant to or in respect of any such person a gratuity in accordance with the provisions of the said section 18 as amended by the last foregoing section.

Application
to certain
authorities
of sections 72,
73 and 74.

1937 c. 68.

76.—(1) The provisions of sections 72 (Transfer of certain sums from fund), 73 (Exclusion of certain remuneration and service for superannuation purposes) and 74 (Extension of powers of Council to grant gratuities to widows and dependants of former employees) of this Act shall apply to a local authority and to a joint committee of local authorities established under section 2 of the Local Government Superannuation Act, 1937, as they apply to the Council and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted in the case of a local authority references to the local authority and to their district respectively and in the case of any such joint committee references to that committee and to the districts of the constituent authorities respectively and subject in both cases to any other necessary modifications.

(2) The provisions of section 74 of this Act shall also apply to the Cheshire Police Authority, the Cheshire Magistrates' Court Committee and the Cheshire Probation and After-Care Committee, as they apply to the Council and for that purpose those provisions shall have effect as if the reference in subsection (2) to an employee of the Council were a reference to an employee of the said authority or of either of the said committees (as the case may require).

PART X

MISCELLANEOUS

Supply of
goods by
Council to
other
authorities.

77.—(1) The Council may purchase and store and supply to an authority any goods or materials required for the discharge of the functions of that authority, and for those purposes the Council and any authority may enter into and carry into effect agreements and do all such other acts as may be necessary or convenient:

Provided that the Council shall not, in pursuance of this section, supply building materials to an authority for the purpose of the erection, alteration or extension or repair and maintenance of houses or other buildings by that authority.

PART X
—cont.

(2) in this section "authority" means an authority discharging functions within the county palatine of Chester being—

(a) a local authority or a joint committee appointed by two or more local authorities;

(b) any statutory undertakers or other body of persons discharging functions in pursuance of any enactment;

(c) a voluntary organisation in receipt of a grant lawfully made by the Council within twelve months of the exercise of the powers of this section;

(d) the council of a county borough;

(e) the Cheshire Police Authority.

78.—(1) For the better performance of their respective powers and duties, provision may be made by agreement in the case of the Council between the Council on the one hand and any local authorities or any of the authorities specified in subsection (4) of this section on the other or in the case of a local authority between the local authority on the one hand and the Council, or local authority or any of the authorities so specified, on the other, for the taking by either party thereto of action of the following kinds—

Provision of reciprocal services, etc., by Council and other bodies.

(a) the undertaking by one party for the other of any administrative, clerical, professional or technical services;

(b) the use or maintenance by one party of any vehicle, plant, equipment or apparatus of the other party and, if it appears convenient, the services of any staff employed in connection therewith;

(c) the carrying out of works of maintenance by one party in connection with land or buildings for the maintenance of which the other is responsible.

(2) Where provision could be made either by an agreement under this section or by virtue of the powers conferred by section 271 of the Act of 1936, it shall be made under the said section 271 and not under this section.

(3) In its application to the use of any mechanical road-making equipment or plant the provisions of subsection (1) of this section shall extend to enable the Council to let for hire such equipment or plant to any local authority or any authority or body specified in subsection (4) of this section or any person carrying out work for, or on behalf of, the Council.

PART X
—cont.

(4) The authorities and bodies hereinbefore referred to are the council of any administrative county other than the Council, the council of a county borough, a regional hospital board whose region includes any part of the county, the Cheshire Police Authority, the Dee and Clwyd River Authority, the Mersey and Weaver River Authority and a parish council and, in the application of subsection (1) of this section to the Council, include any voluntary organisation in receipt of a grant lawfully made by the Council within twelve months of the exercise by the Council of the powers of that subsection.

Electronic or mechanical accounting equipment.

79. At any time after the Council have provided any electronic or mechanical accounting equipment for the purposes of all or any of their accounting work, they may, by agreement with any local authority or other person, use, or permit that local authority or person to use, the said equipment for the purposes of that local authority or person and they may make such charges as may be agreed for the use of the said equipment.

Power to parish councils to pay expenses of public entertainment.

80. The provisions of section 191 (Expenses of public entertainment) of the Act of 1953 shall apply to a parish council as they apply to the Council and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted references to the parish council and to their district.

Research into matters concerning social conditions, etc.

81. The Council may undertake investigations and research into matters affecting the county relating to—

- (a) social or economic conditions; or
- (b) health or hygiene;

and may contribute by grants or otherwise towards the cost of similar investigations and research undertaken by other bodies or persons.

Power to provide car parks for certain purposes.

82.—(1) The Council may provide parking places for vehicles used by members, officers or servants of the Council or other persons using the County Hall and law courts and other halls, offices and buildings provided and maintained by the Council for or in connection with the discharge of their functions and may adapt and use for that purpose any land acquired by them under this section.

(2) For the purposes of this section the Council may acquire by way of purchase, lease or exchange any land whether situated within the county or within a county borough in the county palatine of Chester and may appropriate for those purposes any land belonging to them which is not required for the purpose for which it was acquired.

3.—(1) The powers of any burial authority in the county in relation to a burial ground maintainable by them shall include

power—

- to put, and keep, in order any memorial therein;
- to level any grave therein;
- to remove the whole or any part of a memorial therein;
- to alter the position of any such memorial.

PART X
—cont.

Extension of
power to
maintain
burial grounds

Before exercising a power conferred by paragraph (b), (c) of the foregoing subsection the burial authority shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in their area, with an interval between the dates of publication of not less than six clear days;
- display a notice thereof in a conspicuous position in the burial ground; and
- serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

3) Each of the notices shall—

- (a) contain brief particulars of the burial authority's proposals and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the burial authority will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
- state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the burial authority before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister unless notice is withdrawn.

The burial authority may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after

PART X
—cont.

the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the burial authority under this section, the burial authority may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

(7) The burial authority shall cause a record to be made of each memorial taken from the burial ground under this section containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General

(8) Nothing in the foregoing provisions of this section shall relieve the burial authority from any obligation to which they are subject, apart from those provisions to obtain for any work a faculty or licence of a consistory court.

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the burial authority obtain such a faculty or licence, and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

Power to contribute to maintenance of private burial grounds.

84. A local authority may contribute to the expenses of the care, management or control of any burial ground, whether or not situate within their district, being a burial ground wholly under the management or control of a person other than a burial authority.

For protection of Commonwealth War Graves Commission.

85.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 83 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947, the burial authority shall—

(a) not later than the date upon which such notice is first published in a newspaper circulating in their area serving

upon the Commission a copy of any notice which the burial authority are required to publish pursuant to the said section 83;

give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 83;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

3) The burial authority shall not in pursuance of the powers of the said section 83 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all such of the following matters as the Commission consider appropriate, namely—

(a) that no other memorial shall be placed or erected over such grave;

(b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty of a consistory court after prior notification to the Commission of the application for the licence or faculty;

(c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the burial authority and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister under subsection (4) of the said section 83, the burial authority shall, not later than the date on which the matter is referred to the Minister, inform the Commission in writing of such reference and the Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Minister.

(1) The Council may for the purpose of enabling them to perform any of their functions under—

Power to
require
information
as to
ownership
of premises

(a) any enactment in force at the passing of this Act which authorises the Council to acquire land compulsorily;

PART X
—cont.

- (b) any enactment mentioned in Schedule 3 to this Act; and
- (c) this Act and any local enactment in force at the passing of this Act which authorises the Council to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Council to execute works on lands or premises within the county as the case may be;

require—

- (i) the occupier and any person having an interest in any premises in the county and any person who either directly or indirectly receives rent in respect of such premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder, mortgagee, lessee or otherwise or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and
- (ii) any person who has sold or otherwise disposed of, leased or let any premises in the county to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who, having been required by the Council in pursuance of this section to give to them any information, fails to give that information, or knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding five pounds.

(3) For the purposes of this section the expression "interest" includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

(4) The provisions of any of the enactments referred to in subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Council in so far as they relate to the same subject-matter as this section.

Disposal of
lost and
uncollected
property.

87.—(1) In this section—

the expression "lost property" means any property coming into the custody of the Council after being left on or in any premises occupied by the Council to which the public have access; and

the expression "uncollected property" means any property deposited in any cloakroom or parcels' store provided

PART X
—cont.

by the Council for the use of the public or any containers deposited in any market storeroom provided by the Council in which there is exhibited a notice containing a statement to the effect of subsections (2) and (3) of this section.

(2) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Council may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(3) If any lost or uncollected property within three months of coming into the custody of the Council be not proved to the reasonable satisfaction of the Council to belong to any claimant, shall thereupon vest in the Council:

Provided that any lost or uncollected property which is of a valuable nature and any lost property the custody of which involves unreasonable expense or inconvenience may, notwithstanding that it has not vested in the Council under this section, be disposed of at such time and in such manner as the Council may think fit, and, if it is sold, the proceeds of sale shall vest in the Council at the expiration of three months from the date on which the property came into their custody.

(4) Where any lost property becomes vested in the Council in pursuance of this section, the Council may, if they think fit, deliver to the person, whether an employee of the Council or not, who placed the lost property in the custody of the Council, the whole or any part of such property or of the estimated value hereof in cash.

(5) This section shall, in the case of uncollected property placed in the custody of the Council on express terms inconsistent with the rights of the Council under this section, have effect subject to those terms.

88. Except in any case in which the Council otherwise require Dispensation
much of section 7 of the Theatres Act, 1843, as provides that by Council
actual and responsible manager for the time being of a theatre with bonds
respect of which a licence is granted under that Act and two by theatre
managers.
ties shall become bound in penal sums for the purposes 1843 c. 68.
mentioned in the said section shall cease to have effect as respects
licences granted by the Council under that Act.

PART X

—cont.

Microfilming
of documents.

89.—(1) The Council may make and retain microfilm recordings of documents of the Council.

(2) Notwithstanding anything contained in any enactment, the Council may destroy any documents of the Council other than minute books, of which they have made and retained microfilm recordings:

Provided that—

1958 c. 51.

1962 c. 56.

(a) the Council shall not under this section destroy records deposited with them under the Public Records Act, 1958 or acquired or accepted by them under section 2 of the Local Government (Records) Act, 1962;

(b) nothing in this section shall prejudice or affect the rights of the public to have access to any document of the Council of which a microfilm recording has been made and which has not been destroyed.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything contained in any enactment or any rule of law an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk certifies that—

(a) the document has been destroyed; and

(b) a microfilm recording of the document has been made and

(c) the enlargement is an enlargement of that microfilm recording.

(5) In this section unless the context otherwise requires—

(a) “document” means the whole or part of a register, book, map, plan or other document and includes notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council;

(b) “microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

Power to
change titles
of officers.

90.—(1) Notwithstanding anything in Part IV of the Act of 1933, or in any other enactment, the Council may from time to time by resolution determine that the office, style or title of an officer of the Council shall be that specified in the resolution.

PART X
—cont.

instead of that specified in the Act of 1933 or in any other enactment and any thing done by an officer as holding the office, or in the style or title specified in the resolution, shall be valid and effectual for all purposes as it would have been had it been done by the officer in the office and holding the style or title specified in the Act of 1933.

from the date of the passing of any resolution by the Council pursuant to subsection (1) of this section, any reference (whether specific or general) in any enactment or document to the office or title of an officer to whom the resolution relates shall be construed as if the office or title specified in the resolution were substituted for the office or title specified in that enactment or document.

91. Section 123 of the Act of 1933 in its application to officers employed by the Council shall have effect as if subsections (4) and (5) of section 76 of that Act applied to such officers as those subsections apply to members subject, however, to the substitution for references in those subsections to the clerk of the authority of references to the authority. Disclosure by officers of Council of interest in contracts.

92.—(1) The Council may provide and maintain or contribute to the cost of providing and maintaining recreational, social and welfare facilities for their employees. Recreational and other facilities for employees.

(2) For the purposes aforesaid, the Council may—

(a) erect or maintain buildings;

(b) make such charges as they think fit for the use of facilities provided under this section;

(c) make regulations for the management of such premises.

(3) No power conferred upon the Council by this section shall be exercised in such a manner—

(a) as to be at variance with any trust subject to which any land or building is held, managed or controlled by the Council without an order of the High Court or of the Charity Commissioners, or of the Secretary of State for Education and Science or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or

(b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Council) subject to which a gift or lease of any land or building has been accepted by or granted to the Council without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.